

HCS HB 1871 -- ELECTIONS

SPONSOR: McGaugh

COMMITTEE ACTION: Voted "Do Pass with HCS" by the Standing Committee on Elections by a vote of 13 to 1 with 2 present. Voted "Do Pass" by the Standing Committee on Rules-Administrative by a vote of 8 to 1.

The following is a summary of the House Committee Substitute for HB 1871.

This bill allows a notice of election to be sent by email.

Currently, the filing time for declarations of candidacy for offices in political subdivisions or special districts not otherwise specified in law or charter is from the 17th Tuesday prior to the election through the 14th Tuesday prior to the election.

This bill moves the filing time by one week, from the 16th Tuesday prior to the election to the 13th Tuesday prior to the election. The bill also provides that if the 13th Tuesday prior to the election is a State or Federal holiday, the closing filing date will be the next day that is not a State or Federal holiday.

Currently, the election authority must have automatic tabulating equipment tested within 14 days prior to an election. This bill specifies that this test must occur no later than one week prior to an election.

The bill lengthens the in-person no-excuse absentee voting period from two to four weeks.

Currently, covered voters eligible to register to vote may vote in certain elections by submitting a Federal postcard application to apply to vote at their polling place. This bill changes this requirement from the polling place to the office of the election authority on election day.

Currently, interstate former residents and new residents may vote absentee for presidential and vice presidential electors. The bill allows them to vote for those electors at the office of the election authority on election day.

This bill provides that all lists of absentee ballot applications for people with permanent disabilities will be kept confidential

and must not be posted or displayed in an area open to the general public nor shown to any unauthorized person.

The bill requires any person who files as a candidate for a public office that performs county functions in the City of St. Louis to provide copies of paid receipts or no-tax-due statements for local personal and real property taxes received from the Assessor to the election authority.

The bill applies existing procedures for voters using provisional ballots to voters voting absentee in person at the office of the election authority or at another authorized location designated by the election authority.

This bill allows a provisional ballot to be cast in any public election.

The bill provides that votes for write-in candidates must only be counted for candidates who have filed a declaration of intent to be a write-in candidate, even if no candidate has filed for that office.

The following is a summary of the public testimony from the committee hearing. The testimony was based on the introduced version of the bill.

PROPONENTS: Supporters say that this bill makes a number of common-sense changes to election law that will help voters and allow county clerks to do their jobs more efficiently and effectively. Reinstating the presidential primary has broad public support. Expanding no-excuse absentee voting and the use of provisional ballots will improve the voting experience.

Testifying in person for the bill were Representative McGaugh; Kurt Bahr; Nancy Copenhaver; Arnie C. Dienoff; Responsive Government Action; Marilyn McLeod, League of Women Voters of Mo; Tyler Travers, ACLU MO - American Civil Liberties Union Missouri; Missouri Municipal League; Missouri NEA; Municipal League of Metro St. Louis; Denise Lieberman, Missouri Voter Protection Coalition and MoVPC Action; and Marilyn McLeod.

OPPONENTS: There was no opposition voiced to the committee.

Written testimony has been submitted for this bill. The full written testimony and witnesses testifying online can be found under Testimony on the bill page on the House website.